



File No.: EXP202404509

## RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by DIGI SPAIN TELECOM, S.L.U. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 11, 2024, and based on the following FACTS

FIRST: On November 11, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202404509, in which it was agreed to uphold the claim for the exercise of rights filed by A.A.A. against DIGI SPAIN TELECOM, S.L.U.

SECOND: The resolution now being appealed was duly notified to the appellant on November 11, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which it expresses its disagreement with the resolution in the following terms:

1. On the regulatory limits applicable to the processing of data related to incoming calls.

DIGI indicates that, as it has already stated in previous allegations, the basis for legitimacy is solely for retaining data related to outgoing calls, for the purpose of billing them, and that this information has already been made available to the claimant.

It adds that this legitimacy would not apply to the retention of data related to incoming calls, or calls made from other lines owned by third parties.

It states that the possibility of processing information related to incoming calls only arises for compliance with Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks (Law 25/2007), which establishes that such data must be retained for the fulfillment of specific obligations and can only be made available in specific cases to the Security Forces and Bodies, always authorized by the corresponding and proper judicial resolution (art. 6.1).

DIGI understands that this would constitute a limitation on the right of access under Article 23 of the GDPR, and that it would require a specific legal provision, in order to preserve security, public safety, and the prevention, investigation, detection, or prosecution of criminal offenses.

Therefore, DIGI believes that it lacks a legal basis that allows for the provision of information related to incoming calls to the claimant, given the absence of legal basis for its processing and the lack of legal authorization both in the special regulation and in the general one.

On the other hand, DIGI wishes to state that it has responded to the claimant by providing the outgoing calls, as well as sufficiently justifying the grounds that prevent it from making available the calls made by third parties.

DIGI also wishes to state that, after receiving the Resolution of November 11, it has sent a new communication to the claimant, which has also been forwarded to this Agency, reasonably justifying the legal and regulatory reasons that prevent the provision of incoming calls.

2. On the violation of the rights of third parties.

DIGI points out that, on pages 20 and 21 of the Resolution now being appealed, it is stated that it must be DIGI who evaluates and demonstrates that the provision of this information would negatively affect the rights and freedoms of third parties.

Thus, and as previously noted, the fact that the claimant accesses the telephone records of incoming calls would imply an impact on the rights of third parties, and it substantiates this on the following grounds:

i) because it may occur that the applicant or the holder of the contract is not the user of the telephone line, so information about calls in which the claimant has not intervened could be provided, which is relevant in the case of minors and individuals in vulnerable situations,

and could lead to situations of control over the use of the line in cases where the claimant has not intervened, and against the protection of privacy.

In this regard, DIGI wishes to state that the telephone device itself contains a record of incoming and outgoing calls, so it is likely that the request for the record is made by someone who does not have access to the mobile device.

ii) because providing this information implies the provision by DIGI of personal data of third parties who have made the call, for which it is not authorized.

This lack of authority would be evident in cases of calls from withheld numbers, where the caller chooses not to identify themselves, considering that it is a right expressly recognized in Article 65 of Law 11/2022, of June 28, General Telecommunications.

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At this point, DIGI wishes to express that, in compliance with Law 25/2007, the register it maintains regarding incoming calls does not differentiate between hidden and non-hidden calls, as the Law does not provide for this distinction. Therefore, it understands that granting this list could constitute a violation of the rights of those third parties who exercise their right to make calls with hidden numbers. DIGI also states that the resolution now being appealed included regulations regarding the removal of suppression marks at the source of the line identification, in accordance with Article 46 of Law 32/2003, General Telecommunications Law.

However, it understands that this is not applicable as there are no records at DIGI of any claims, complaints, or objections from the claimant regarding calls made by hidden numbers as being bothersome or malicious.

For all the above reasons, DIGI finds it necessary to deny this request and the exercise of the right of access concerning information related to incoming calls, given the lack of standing of this party to address them, in order to ensure that the rights of third parties are not negatively affected, in accordance with the provisions of Article 15.4 and 23.1 of the GDPR.

Additionally, it is the regulation itself that provides for the partial attention to the right of access, as DIGI has done, taking into account Recital 63 of the GDPR.

## LEGAL GROUNDS

### I

#### Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

### II

#### Response to the allegations presented

The statements made by the appellant in their appeal document referred both to the regulatory limits applicable to the processing of data related to incoming calls, as well as to a possible violation of the rights of third parties in the event that the requested access were granted.

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These two issues have been extensively addressed in the resolution now being appealed, which stated the following:

“In the case analyzed here, it has been established that the claimant requested access to the register of incoming and outgoing calls on their mobile phone between \*\*\*DATE.1 and \*\*\*DATE.2 including ‘Detail of Record of UNATTENDED RECEIVED CALLS including those from ‘hidden number as such’ (what we commonly refer to as ‘missed calls’) and that the respondent provided the detail of their consumption, and ‘(...) We inform you that we do not have the incoming or missed calls as you request.”

During the processing of the procedure, the respondent has indicated that the balancing of rights and obligations should be taken into account not only for DIGI and the claimant but also with respect to third parties, as well as the restrictions described in Law 25/2007 of October 18, on the retention of data related to electronic communications and public communications networks. That is, the limitation of processing exclusively for the provision to Authorized Agents and Judicial Bodies, as provided in that Law.

In response to such statements, it should be noted, first of all, regarding the alleged restrictions that Law 25/2007 would impose on the right of access, that the Guidelines 1/2022, on the rights of data subjects — Right of access Version 2.1 of March 28, 2023, from the European Data Protection Board, state that

#### “6.1. General Observations

165. The right of access is subject to the limits resulting from Article 15, paragraph 4, of the GDPR (rights and freedoms of others) and from Article 12, paragraph 5, of the GDPR (manifestly unfounded or excessive requests).

Furthermore, Union or Member State legislation may restrict the right of access in accordance with Article 23 of the GDPR. Exceptions relating to the processing of personal data for scientific, historical, or statistical purposes or for archiving purposes in the public interest may be based on Article 89, paragraph 2, and Article 89, paragraph 3, of the GDPR, and exceptions for processing carried out for journalistic purposes or for academic, artistic, or literary expression may be based on Article 85, paragraph 2, of the GDPR.

166. It is important to note that, apart from the aforementioned limits, exceptions, and possible restrictions, the GDPR does not allow for other exemptions or exceptions to the right of access. This means, among other things, that the right of access does not have any general reservation to proportionality concerning the efforts that the data controller must make to comply with the requests of data subjects under Article 15 of the GDPR. Furthermore, it is not permitted to limit or restrict the right of access in a contract between the data controller and the data subject.”

Similarly, the same guidelines interpret the scope of the aforementioned right of access, denying an excessively restrictive interpretation and allowing the

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possibility that in its exercise it may include data that could affect other individuals:

The scope of the right of access is determined by the scope of the concept of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name, address, phone number, etc., a wide variety of data may be included in this definition, such as medical findings, purchase history, creditworthiness indicators, activity logs, search activities, etc. Personal data that has been subjected to pseudonymization remains personal data rather than anonymous data. The right of access refers to the personal data of the person making the request. This should not be interpreted too restrictively and may include data that could also affect other individuals, for example, the communication history involving incoming and outgoing messages.

Finally, regarding access to traffic and location data retained in compliance with Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, it should be noted that the main objective of said Law 25/2007 is to establish the obligation of telecommunications operators to retain certain data generated or processed by them, in order to make them available to authorized agents. Authorized agents include, among others, members of the

Police Forces authorized for this purpose within the framework of a criminal investigation for the commission of a crime.

In this regard, the Law respects the pronouncements that the Constitutional Court has issued concerning the right to the secrecy of communications, a respect that is articulated, in particular, through two guarantees: firstly, that the data subject to the retention obligation are data exclusively related to the communication, whether by telephone or made via the Internet, but in no case revealing the content of it; and secondly, that the transfer of such data affecting a specific communication or communications will always require prior judicial authorization.

Article 1.1 of the aforementioned Law 25/2007 states that

“1. This Law aims to regulate the obligation of operators to retain the data generated or processed in the context of providing electronic communications services or public communications networks, as well as the duty to transfer such data to authorized agents whenever they are required through the corresponding judicial authorization for the purposes of detecting, investigating, and prosecuting serious crimes contemplated in the Penal Code or in special criminal laws.”

And Article 3, Data subject to retention:

“1. The data that must be retained by the operators specified in Article 2 of this Law are the following:

a) Data necessary to trace and identify the origin of a communication:

1º Regarding fixed network telephony and mobile telephony:

i) Call number.

ii) Name and address of the subscriber or registered user. (...)

b) Data necessary to identify the destination of a communication:

1º Regarding fixed network telephony and mobile telephony:

i) The number or numbers dialed (the destination phone number or numbers) and, in those cases where other services are involved, such as call forwarding or transfer, the number or numbers to which the calls are transferred.

ii) The names and addresses of the subscribers or registered users. (...)

c) Data necessary to determine the date, time, and duration of a communication:

1º Regarding fixed network telephony and mobile telephony: the date and time of the beginning and end of the call or, where applicable, of the messaging service or multimedia service.

(...)

d) Data necessary to identify the type of communication.

1º Regarding fixed network telephony and mobile telephony: the telephone service used: type of call (voice transmission, voicemail, conference, data), supplementary services (including call forwarding or transfer) or messaging or multimedia services used (including short message services, advanced multimedia services, and multimedia services).

(...)

e) Data necessary to identify the communication equipment of the users or what is considered to be the communication equipment:

1º Regarding fixed network telephony: the originating and destination phone numbers.

2º Regarding mobile telephony:

i) The originating and destination phone numbers.

ii) The International Mobile Subscriber Identity (IMSI) of the calling party.

iii) The International Mobile Equipment Identity (IMEI) of the calling party.

iv) The IMSI of the receiving party.

v) The IMEI of the receiving party.

vi) In the case of anonymous prepaid services, such as services with prepaid cards, the date and time of the first activation of the service and the location tag (the cell identifier) from which the service was activated.

(...)

f) Data necessary to identify the location of the mobile communication equipment:

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1. The location label (cell identifier) at the beginning of the communication.
2. The data that allows for the geographical location of the cell to be established, by reference to the location label, during the period in which the communication data is retained.

2. No data revealing the content of the communication may be retained under this Law.”

Article 6, General rules on data transfer, of the aforementioned law establishes that:

“1. The data retained in accordance with the provisions of this Law may only be transferred in accordance with its provisions for the purposes determined and with prior judicial authorization.”

Article 9 of the aforementioned Law 25/2007, Exceptions to the rights of access and cancellation, provides that:

“1. The data controller shall not communicate the transfer of data carried out in accordance with this Law.

2. The data controller shall deny the exercise of the right of cancellation under the terms and conditions provided for in Organic Law 15/1999, of December 13.”

The exceptions regarding the exercise of the rights in Articles 15 to 22 of the GDPR must be established by law. Furthermore, from the transcription of Article 9, it can be easily noted that no restriction is established concerning the possibility of exercising the right of access. It only contains the obvious precautions that the data subject shall not be informed of the transfer of the data (an obvious issue given that it concerns criminal investigations), and that the right of erasure cannot be exercised. In the present case, from the examination of the documentation provided by the parties, it has been established that the claimant requested the respondent access to the record of incoming and outgoing calls from their mobile phone during a period in 2023, and that the respondent only provided the record of outgoing calls.

However, according to what has been stated, the denial of access cannot be based on an alleged limitation of the right of access imposed by Law 25/2007, since, as already pointed out, this law does not establish any limitation on the exercise of the right of access, specifically and in the case examined, nor expressly regarding the list of incoming calls requested by the claimant.

Now, it should be clarified, secondly, that the right of access must be reconciled with the provision of Article 15.4 of the GDPR, that is, it should not negatively affect the rights and freedoms of third parties.

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In this way, the data controller has the burden of demonstrating that the rights and freedoms of others would be affected in order to limit the access of the data subject to the personal data concerning them. In this regard, the Guidelines 1/2022 indicate that “

The data controller must be able to demonstrate that the rights or freedoms of others would be negatively affected in the specific situation. The application of Article 15, paragraph 4, should not lead to the total denial of the data subject's request; it would only result in the exclusion or illegibility of those parts that may have negative effects on the rights and freedoms of others.”

Thus, among other rights that may be affected - a matter for the data controller to evaluate - we will mention regarding incoming calls made with a withheld number, that Article 65.1 of Law 11/2022, of June 28, General Telecommunications Law (LGTel) recognizes, in its letter o), this right of subscribers. It indicates that final users and consumers of publicly available electronic communications networks and services shall have “the right to prevent, through a simple and free procedure, the presentation of the identification of their line in the calls they generate or the presentation of the identification of their line to the user who makes a call to them.” However, with the following limitation, as “they may not exercise this right when it concerns emergency communications through the emergency number 112 or communications made to entities providing emergency services as determined by royal decree. For a limited period, final users may not exercise this right when the subscriber to the destination line has

requested the identification of malicious or annoying calls made to their line.”

In this line of thought, it is appropriate to recall that the Regulation on the conditions for the provision of electronic communications services, the universal service, and the protection of users, approved by Royal Decree 424/2005, of April 15, provides regarding the suppression of the identification of the originating line, in its Articles 72, 77, and 78, the following:

Article 72. Suppression at the source, call by call, of the identification of the originating line.  
“(…).

The suppression at the source by the user, call by call, of the identification of the originating line in public fixed telephone networks shall be carried out by dialing a code on the telephone accesses made through these networks.

For the purposes established in the previous paragraph, the Secretary of State for Telecommunications and the Information Society shall assign a short number as a code for the suppression at the source by the user, call by call, of the identification of the originating line.

The suppression at the source by the user, call by call, of the identification of the originating line in mobile telephony networks, in its GSM modality and in the network

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The integrated services digital marking shall be carried out by dialing codes that conform, in order of preference, to European technical regulations, to international regulations, to international operator agreements, and, in their absence or as a complement, to national technical specifications.

The marking of the codes mentioned in the previous paragraphs shall be carried out prior to the selection of the operator, if applicable, and to the number of the subscriber recipient of the call.

(…)

Article 77. Elimination of the suppression at source of the line identification.

“The operators mentioned in section 1 of Article 71 shall eliminate the suppression marks at source of the line identification when the destination of the calls corresponds to entities providing emergency call services through the number 112 and others authorized for emergency assistance or those related to public safety or national defense. The application of the mechanism for eliminating suppression marks at source of the line identification for emergency services other than those attended through the number 112 shall be approved, at the request of the entities providing the aforementioned emergency services or ex officio, in advance and for each particular case or type of emergency service, by resolution of the Secretary of State for Telecommunications and the Information Society.

The application of the mechanism for eliminating suppression marks at source of the line identification for reasons of public safety or national defense shall be carried out when so established by resolution of the competent Ministry in these matters. The resolution shall be processed and approved following the principles of transparency and proportionality, and shall be communicated to the Secretary of State for Telecommunications and the Information Society and to the other Regulatory Authorities referred to in Article 46 of Law 32/2003, of November 3, General Telecommunications Law.

Furthermore, the suppression marks at source of the line identification may be eliminated for a limited period of time when the subscriber has requested the identification of malicious or annoying calls, in accordance with the provisions of the current regulations at any given time regarding the protection and suspension of the guarantees of the secrecy of communications.” (the underlining is ours)

Article 78. Permanent suppression at destination of the identity of the line of origin.

“The Ministry of Industry, Tourism and Trade may establish, to protect the rights of citizens, especially the right to privacy, that, free of charge, certain destinations of calls associated with certain services shall not have the facility for identifying the line of origin.” (the underlining is ours)

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Therefore, it follows from such provisions that the regulations have delineated the assumptions and circumstances under which the recipient of a call with a hidden number may know the identification of the originating line. Outside of these cases, the holder of the originating line has an expectation that their telephone line will remain hidden from the recipient of the call, that is, they have an expectation of privacy that may be compromised by the subsequent knowledge of this information by the interested party.

Consequently, the right of access to this information could imply an interference with the right to privacy of the holders of the originating lines of the calls. And on this matter, Article 15.4 of the GDPR states that the right of access must not negatively affect the rights and freedoms of third parties. In any case, as already indicated, while the right to data protection is not an absolute right, Article 15.4 of the GDPR should not be interpreted in such a way that its application results in denying the information to the interested party.

The aforementioned Guidelines 1/2022 provide that when interpreting Article 15, paragraph 4, of the GDPR, special precautions must be taken not to unjustifiably extend the restrictions established in Article 23 of the GDPR, which are only permitted under strict conditions. It will be the data controller who reconciles the conflicting rights in each case. They state the following:

173. Regarding Recital 4 of the GDPR and the justification of Article 52, paragraph 1, of the Charter of Fundamental Rights of the European Union, the right to the protection of personal data is not an absolute right. Therefore, the exercise of the right of access must also be weighed against other fundamental rights in accordance with the principle of proportionality. When the assessment of Article 15, paragraph 4, of the GDPR demonstrates that compliance with the request has negative effects on the rights and freedoms of other participants (Phase 1), the interests of all participants must be weighed, taking into account the specific circumstances of the case and, in particular, the likelihood and severity of the risks present in the communication of the data. The data controller must attempt to reconcile the conflicting rights (Phase 2), for example, by implementing appropriate measures that mitigate the risk to the rights and freedoms of others. As emphasized in Recital 63, the protection of the rights and freedoms of others under Article 15, paragraph 4, of the GDPR must not result in the refusal to provide all the information to the interested party. This means, for example, when applying the limitation, that information relating to other individuals must be rendered unreadable to the extent possible rather than refusing to provide a copy of the personal data. However, if it is impossible to find a solution to reconcile the relevant rights, the data controller must decide in a subsequent step which of the conflicting rights and freedoms prevails (Phase 3).

Therefore, it must be assumed that the claiming party has the right to access the requested information, but DIGI, as the data controller, will have to assess whether there are rights and freedoms of others that are negatively affected, what these rights and freedoms are, if applicable, as well as weigh the rights in...

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conflict and seek solutions that reconcile the right of access of the interested party (as access cannot simply be denied) while avoiding negative impacts on the rights and freedoms of others.

Furthermore, it is important to clarify that the right of access will be exercised by the interested party in relation to the personal data "concerning them" (art. 15.1 GDPR). Therefore, the party being claimed against must take the necessary precautions to ensure that only the personal data concerning the claiming party is provided to that claiming party, as the latter is the user (not just the holder) of the mobile phone line. All of this is in consideration of the risks to the rights and freedoms of the interested parties.

III

Conclusion

Having examined the appeal for reconsideration submitted by the interested party, it does not provide

new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution, therefore it is appropriate to agree to its dismissal.

IV

#### Late Resolution

Due to operational reasons of the administrative body, which are not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of art. 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in art. 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by DIGI SPAIN TELECOM, S.L.U. against the Resolution of this Spanish Agency for Data Protection issued on November 11, 2024, in file EXP202404509.

SECOND: TO NOTIFY this resolution to DIGI SPAIN TELECOM, S.L.U.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative route, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

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President of the Spanish Agency for Data Protection

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